

Court No. - 39

Case :- WRIT - C No. - 50348 of 2016

Petitioner :- M/S Vinay Foods And Another

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Manoj Kumar, Santosh Kumar Singh

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Dilip Gupta, J.

Hon'ble Abhai Kumar, J.

The petitioners had earlier filed Writ-C No.5483 of 2016 to assail the demand notice dated 24 November 2015 that was issued by the Executive Engineer of Purvanchal Vidyut Vitran Nigam Limited. This petition was dismissed on 10 February 2016 with liberty to the petitioners to invoke the alternative remedy provided under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The respondents have now issued an order dated 10 March 2016 requiring the petitioners to deposit Rs.6,83,757/- instead of Rs.7,75,214/- as demanded in the notice dated 24 November 2015.

Learned counsel for the petitioners has, on the basis of the averments made in paragraph 16 of the writ petition, submitted that the petitioners had earlier deposited Rs.50,000/-, Rs.30,000/- and Rs.50,000/- and caution money of Rs.1,25,905/- but that has not been adjusted and only an amount of Rs.91,457/- has been adjusted.

It is for the petitioners to move an application before the authority which passed the order dated 10 March 2016 to point out the aforesaid facts.

Sri Narendra Kumar Tiwari, learned counsel appearing for the respondents states that in case such an application is filed by the petitioners, a decision shall be taken expeditiously.

This writ petition is, accordingly, disposed of with a direction that in the event the petitioners file an application with a certified copy of this order before the competent authority, a decision shall be taken expeditiously and preferably within a period of two months from the date of filing of the representation.

It is made clear that the Court has not adjudicated on the merits of the case which shall be examined by the authority concerned in accordance with law.

Order Date :- 20.10.2016

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(Dilip Gupta, J.)

(Abhai Kumar, J.)